
Journal

2013 PSC 661

Court

SUPREME COURT OF AZAD JAMMU & KASHMIR

Date

2012-02-22

Appeal No.

CIVIL APPEAL NO. 22 OF 2011

Judge

CH. MUHAMMAD IBRAHIM ZIA AND RAJA SAEED AKRAM KHAN

Parties

AISHA BIBI VERSUS MUHAMMAD IDREES AND ANOTHER

Lawyers

FOR THE APPELLANT: RAJA IQBAL RASHEED MINHAS, ADVOCATE. FOR THE
RESPONDENTS: RAJA AMJAD AH KHAN, ADVOCATE.

Statutes

AJ&K INTERIM CONSTITUTION ACT (1974) - SS. 9, 41 AJ&K FAMILY COURTS ACT, 1993 -
SS. 9, 10, 11, 12

Judgment

RAJA SAEED AKRAM KHAN, J. - This appeal, with the leave of the Court, is directed against the judgment passed by the High Court on 15.11.2010, whereby the order of the Judge Family Court, Muzaffarabad, has been quashed by issuing a direction to provide an opportunity to the defendant to lead his evidence.

2. The brief facts culminating into this appeal are that Aisha Bibi filed two suits for dissolution of marriage and realization of maintenance allowance in the Court of Judge Family Court, Muzaffarabad. The Judge Family Court closed the evidence of defendant, respondent herein, on 8.1.2010 on the ground that the defendant-respondent has not attached the list of witnesses alongwith written statement, therefore, he cannot be provided an opportunity for producing any other witness, defendant-respondent filed a writ petition in the Azad Jammu and Kashmir High Court. The High Court accepted the writ petition vide impugned judgment on 15.11.2010. Hence this appeal.

3. Raja Iqbal Rasheed Minhas, the learned counsel for the plaintiff-appellant, has submitted that the judgment of the High Court is against law and facts of the case. The High Court failed to examine the important question of law that the provisions of Section 9 of the Azad Jammu and Kashmir Family Courts Act, 1993 are mandatory in nature and the defendant-respondent was under obligation to file the written statement within 15 days of the service of notice, the copies of documentary evidence he wants to produce in the case and a list of witnesses with their names and addresses alongwith a precis of the evidence which the each witness is expected to give. He urged that there was no justification to interfere with the order passed by the Judge, Family Court, on 16.2.2010 which was perfect and speaking order. He argued that the High Court failed to resolve the controversy involved in the writ petition in its true perspective. He lastly argued that the writ has been issued in a hasty manner. No notice was served upon the plaintiff-appellant while deciding the writ petition which is otherwise against the principle of natural justice.

4. On the other hand, Raja Amjad Ali Khan, the learned counsel appearing on behalf of the respondent, supported the judgment of the High Court with full vehemence while submitting that the judgment is in accordance with law. No illegality or infirmity has been committed while issuing the writ. He urged that ample opportunity has been provided to the appellant to contest the writ petition which is apparent from the judgment of the High Court. He further argued that on 16.1.2010,* the learned Judge, Family Court, was on leave and the next date was fixed by the Reader on which witnesses of the defendant-respondent were present.

In spite of the fact that file was placed before the learned Judge, Family Court, but he did not record the evidence on the ground that no list of witnesses was furnished by the defendant-respondent as required under Section 9 of the Azad Jammu and Kashmir Family Courts Act, 1993.

5. We have heard the arguments of both the parties at length and also perused the record. The whole controversy revolves around Section 9 of the Azad Jammu and Kashmir Family Courts Act. Although the same has been reproduced in the judgment of the High Court, yet we deem it proper to reproduce the same alongwith sections 10 and 11 of the Azad Jammu and Kashmir Family Courts Act, which read as under:- "9. Written statement- (1) Within fifteen days of- the service of notice upon him by registered post or the appearance of a notice in a newspaper, whichever is earlier, the defendant shall appear in Court and file his written statement.

(2) With the written statement the defendant shall attach- (a) copies of the entire documentary evidence that he wishes to produce in the case; and (b) a list of the names and addresses of his

witnesses alongwith a precis of the evidence that each witness is expected to give.

(3) Copies of the written statement and the documents referred to in sub-section (2) shall be sent by registered post by defendant to the plaintiff within three days of his filing the written statement: Provided that if there are several defendants and they file a joint written statement, only one of them shall send a copy of the written statement with the documents mentioned in sub-section (4) If the defendant fails to appear within the time specified in sub-section the Family Court may proceed against him ex parte.

10. Pre-trial proceeding.- (1) As soon as may be, after the written statement has been filed, the Court shall fix a date for pre-trial hearing of the case and issue notices to the parties for attending the Court on the date so fixed.

(2) On the date so fixed, the Court shall examine the plaint; the written statement (if any) and the precis of evidence and documents filed by the parties and shall also, if it so deems fit, record the statement of parties or their counsel, (3) ' At the pre-trial hearing, the Court shall ascertain the points at issue between the parties and attempt to effect a.

compromise or reconciliation between the parties, if this be possible.

(4) If no compromise or reconciliation is possible, the Court shall frame the issues in the case and fix a date for evidence.

11. Recording of evidence.- (1) On the date fixed for recording of evidence, the Family Court shall examine the witnesses produced by the parties in such order as it deems fit.

(2) The Court shall not issue any summons for the appearance of any witness unless, within three days of the framing of issues, any party intimates the Court that it desires a witness to be summoned through the Court and the Court is satisfied that it is not possible or practicable for such party to produce the witness.

(3) The witnesses shall give their evidence in their own words: Provided that the parties or their counsel may further examine, cross-examine or re-examine the witness: Provided further that the Family Court may forbid any question which it regards as one or is needlessly offensive in form.

(3-A) The Family Court may, if it so deems fit, put any question to any witness for the purposes of elucidation of any point which it considers material in the case.

(4) The Family Court may permit the evidence of any witness to be given by means of an affidavit: Provided that if the Court deems fit it may call such witness for the purpose of examination in accordance with sub-section 6. A glance reading of the above provisions shows that these are unambiguous and special procedure has been laid down in these provisions to achieve the object of enactment, i.e., early disposal of the family matters. We have also examined the preamble of this law. Although the preamble is not an integral part of the statute, but it can be helpful to ascertain the intention of the legislation. The preamble of the Azad Jammu and Kashmir Family Courts Act reads as under:- "Whereas it is expedient to make provision for the establishment of Family Courts for the expeditious settlement and disposal of disputes relating to marriage and family affairs and for matters connected therewith." The wording of the preamble itself shows that the object of enactment was expeditious disposal of disputes relating to family affairs. The provisions of Section 9 itself reflect that a specific period has been given for appearance of the defendant and filing written statement alongwith documents which have been mentioned in sub-section 2(a) and Then under sub-section (4) of Section 9 in case of failure of

the defendant to appear within specified time, the Court may proceed against him ex parte. We have also examined Section 12 of the Azad Jammu and Kashmir Family Courts Act under which the Court has to decide the case within a period of four months from the date of the presentation of the plaint.

7. After going through all the relevant provisions, it reveals that the scheme of law is to decide the family matters expeditiously and in case the relevant provisions are not complied with, it will amount to defeat the object of the legislation. Nobody is allowed to run the Courts proceedings according to his own wishes. Law has to be observed as it is and not as it should be or in a manner not authorized by law.

8. The High Court while delivering the impugned judgment has observed at page 4 of the judgment as under.- "A perusal of the above provision would show that a defendant is bound to attach the copies of the entire documentary evidence intends to produce in order to prove his case and a list of witnesses and alongwith the precis of evidence that each witness is expected to give. In the estimation of the learned Family Court, as the defendant has not filed any list of witnesses, therefore, he cannot be allowed to lead evidence and the same would be deemed to have been closed. In my estimation, approach by the learned Additional District Judge/Judge Family Court is not in accordance with the above reproduced provision of law. A statute cannot be construed in such a manner that frustrate very purpose of the legislation. Though the procedure contained in the Code of Civil Procedure has been specifically excluded to the proceedings before the Judge Family Court but the guidance can be taken from the similar provisions of C P C. Under Order 16 of the Code of Civil Procedure, a plaintiff has to submit the list of witnesses alongwith their expenses, if he intends to get them summon. Failure on the part of the plaintiff or defendant cannot be taken that his evidence has been closed, rather the plaintiff or defendant, as the case may be, is directed to produce his evidence at his own responsibility. The effect of not-filing the documentary evidence alongwith the written statement before the Judge Family Court is only that such a document cannot be considered at a later stage. Similarly, where a list is not filed such list cannot be accepted at later stage, however, it does not mean that plaintiff or defendant before the Family Court is forever debarred from producing his evidence in support of his claim. The filing of the list and precis evidence is only for the purpose that unnecessary evidence may not be got summoned which has an effect of prolonging the trial..It is a well-recognized principle of law that the Judges are duty bound to apply the law as it is. No word can be inserted in a -statute which otherwise has not been incorporated by the legislature. The judgment cannot be passed against a party in violation of the principle of natural justice which is also recognized by the Quran and Sharia." 9. Despite the fact that the High Court has taken care of the above-said provisions while observing that the defendant was bound to attach the copies of the entire documentary evidence intends to produce in order to prove his case and a list of witnesses and alongwith the precis of evidence that each witness is expected to give, it has issued the writ while quashing the order of the Judge, Family Court on the basis of inference drawn on the presumptions.

10. We feel no hesitation to hold that the judgment of the High Court is not sustainable in the eye of law. The High Court failed to interpret the provisions of Section 9 of the Azad Jammu and Kashmir Family Courts Act, 1993 in its true perspective.

The nutshell of the above discussion is that we accept the appeal, set aside the order passed by the High Court on 15.11.2010 and restore that of the Judge, Family Court, Muzaffarabad dated 16.2.2010 with no order as to the costs.

Appeal accepted.

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